

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
ROBERT SANCHEZ,

Plaintiff,

-against-

SUMMONS

Plaintiff designates
BRONX County as the
place of trial

CITY OF NEW YORK, P.O. OLGA PETRENKO,
P.O. DEREK BERNARD, P.O. YASMEL SOFO, P.O. ERIC
WEINSTEIN and OFFICER[S] JOHN AND JAMES DOE,
names being fictitious and meant to designate additional
offending officers,

The basis of venue is:
CPLR 504 (3)

Defendants.
-----X

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.
September 13, 2013


By: JONATHAN L. GLEIT, ESQ.
Attorney for Plaintiff

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
P.O. Olga Petrenko, Shield No. 2506, P.O. Derek Bernard, Shield No. 21066, both 48th Pct, 450 Cross Bronx
Expressway, Bronx NY 10457; P.O. Yasmel Sofo, Shield No. 12862, 47th Pct., 4111 Laconia Ave., Bronx NY
10466 and P.O. Eric Weinstein, Shield No. 9700, 52nd Pct 1316 Webster Avenue, Bronx NY 10467

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COUNTY CLERK
BRONX COUNTY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ROBERT SANCHEZ,

Plaintiff,

-against-

Index No.:

VERIFIED COMPLAINT

CITY OF NEW YORK, P.O. OLGA PETRENKO, P.O. DEREK
BERNARD, P.O. YASMEL SOFO, P.O. ERIC WEINSTEIN
and OFFICER[S] JOHN AND JAMES DOE, names being
fictitious and meant to designate additional offending
officers,

Defendants.
-----X

Plaintiff, by his attorney, **Jonathan L. Gleit, Esq.**, complaining of the Defendants,
respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF ROBERT SANCHEZ

1. At the time of the commencement of this action, plaintiff ROBERT SANCHEZ
was and still is resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and
State of New York.
3. That at all times herein mentioned Defendant CITY OF NEW YORK was, and
still is, a Municipal Corporation and body politic, duly formed, organized and existing
under and by virtue of the laws of the State of New York.

4. That the CITY OF NEW YORK maintains a Police Department.
5. That on and about July 6, 2012, P.O. OLGA PETRENKO was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
6. That on and about July 6, 2012, at approximately 4:30 A.M., P.O. OLGA PETRENKO was working and acting within the scope of her employment as a Police Officer, and under the color of law.
7. That on or about July 6, 2012 at approximately 4:30 A.M., at or near the front of 2079 Mohegan Avenue, Bronx, New York, the plaintiff ROBERT SANCHEZ was improperly arrested and confined without warrant, privilege, proper authority or justification, having no reason in law or in fact to arrest or confine ROBERT SANCHEZ.
8. That all criminal charges brought against plaintiff, which were brought under docket number 2012SX075961 in the Criminal Court of the City of New York, Bronx County, regarding the incidents of July 6, 2012, were dismissed by Judge of said court on November 15, 2012.
9. That on and about July 15, 2012, P.O. DEREK BERNARD was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

10. That on and about July 15, 2012, at approximately 6:30 A.M., P.O. DEREK BERNARD was working and acting within the scope of his employment as a Police Officer, and under the color of law.

11. That on or about July 15, 2012 at approximately 6:30 A.M., at or near the front of 2079 Mohegan Avenue, Bronx, New York, the plaintiff ROBERT SANCHEZ was improperly summoned and detained without warrant, privilege, proper authority or justification, having no reason in law or in fact to summons or detain ROBERT SANCHEZ.

12. That all criminal charges brought against plaintiff, which were brought under summons number 4404234454 in the Criminal Court of the City of New York, Bronx County, regarding the incidents of July 15, 2012, were dismissed by Judge of said court on September 20, 2012.

13. That on and about July 16, 2012, P.O. YASMEL SOFO was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

14. That on and about July 16, 2012, at approximately 8:30 A.M., P.O. YASMEL SOFO was working and acting within the scope of her employment as a Police Officer, and under the color of law.

15. That on or about July 16, 2012 at approximately 8:30 A.M., at or near the front of 2079 Mohegan Avenue, Bronx, New York, the plaintiff ROBERT SANCHEZ was improperly detained and summonsed, with no reason in law or fact to detain and summons ROBERT SANCHEZ.

16. That all charges brought against plaintiff, which were brought under summons number 440374554 in the Criminal Court of the City of New York, Bronx County, regarding the incidents of July 16, 2012, were dismissed by Judge of said court on September 20, 2012.

17. That on and about August 24, 2012, P.O. JOHN DOE, name presently unknown to plaintiff but known to defendant CITY OF NEW YORK was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

18. That on and about August 24, 2012, at approximately 2 A.M., P.O. JOHN DOE was working and acting within the scope of his/her employment as a Police Officer, and under the color of law.

19. That on or about August 24, 2012 at approximately 2 A.M., at or near the front of 2083 Mohegan Avenue, Bronx, New York, the plaintiff ROBERT SANCHEZ was improperly arrested and confined without warrant, privilege, proper authority or justification, having no reason in law or in fact to arrest or confine ROBERT SANCHEZ.

20. That all criminal charges brought against plaintiff, which were brought under case number 49076C-2012 in the Bronx Supreme Court, Criminal Term regarding the incidents of August 24, 2012, were dismissed by Judge John Wilson of said court on May 15, 2013.

21. That on and about August 26, 2012, P.O. ERIC WEINSTEIN was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

22. That on and about August 26, 2012, at approximately 2:30 A.M., P.O. ERIC WEINSTEIN was working and acting within the scope of her employment as a Police Officer, and under the color of law.

23. That on or about August 26, 2012 at approximately A A.M., at or near the intersection of Fordham Road and Southern Boulevard, Bronx, New York, the plaintiff ROBERT SANCHEZ was improperly detained and summonsed, with no reason in law or fact to detain and summons ROBERT SANCHEZ.

24. That all charges brought against plaintiff, which were brought under docket number 2012BX068428 in the Criminal Court of the City of New York, Bronx County, regarding the incidents of August 26, 2012, were dismissed by Judge Shawn Kelly of said court on March 12, 2013.

25. That on and about the aforesaid dates, OFFICER[S] JOHN AND/OR JAMES DOE were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

26. That on and about the aforesaid dates at the aforesaid times and places,, OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.

27. That the defendants, their agents, servants and/or employees repeatedly summonsed, detained, arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification or without other privilege.

28. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

29. That the defendants P.O. OLGA PETRENKO, P.O. DEREK BERNARD, P.O. YASMEL SOFO, P.O. ERIC WEINSTEIN and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutors of the criminal actions against plaintiff thereby causing him to suffer unjust prosecutions initiated without probable cause that the prosecutions would succeed.

30. That defendants, their agents, servants and/or employees continued to prosecute plaintiff and threaten and deny him his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

31. That by reason of the aforementioned, the Defendants actions amounted to a malicious prosecutions of ROBERT SANCHEZ.

32. As a result of the malicious prosecutions, plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of unjust criminal prosecution, and was otherwise damaged and injured and forced to defend his liberty for a period of approximately fifty seven days.

33. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact and without being otherwise privileged, and plaintiff being aware of his unlawful confinement was thereby caused freight, shock, emotional distress and physical consequences.

34. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of summonsing, detaining and arresting innocent citizens, almost exclusively citizens of a racial minority, and engaging in a policy and procedure of arresting persons upon pretext and/or the fabrication of evidence, and testify falsely so

often, omitting such acts or fabricating evidence under false pretext, that such conduct is considered routine by the offending officers for nefarious, unlawful reasons such as the fulfillment of ticket and arrest quotas, and euphemistically known as 'ticket blitzing', and subjugate minority population without reprimand to the offending officers. That said illegal and unlawful arrests without reasonable or probable cause are a matter of policy and record and openly acknowledged or known by the defendants, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein and evidenced by the multitude of actions brought in state and federal courts and complaints made to the Civilian Complaint Review Board and the Bureau of Internal Affairs.

35. Said policy and procedure of having productivity goals which results in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeney, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that narcotics officers were expected to make certain arrest goals. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City

Police Officer Adhyl Polanco testified in open court and under oath that the NEW YORK CITY POLICE DEPARTMENT routinely engage in tickets and arrests without a legal reason to do so and are required or expected to do so, to satisfy arrest quotas. Said arrest quotas, often referred to as productivity goals, lead to a practice and procedure of, for instance, issuing wrongful summons to innocent persons or persons who have committed no violation of law.

36. Said practice, policy or procedure is evidenced, for example, by the conviction of P.O. Paul Pizzuto of the NEW YORK CITY POLICE DEPARTMENT in May 2012 for falsifying business records in issuing summonses in an effort to satisfy quotas; the May 7, 2012 advertisement in the NY Daily News by the Police Benevolent Association stating "Because of ticket quotas, New York City police officers are being subjected to undue pressure to write summonses to as many motorists as possible, and they are being subjected to undue pressure to convict as many motorists as possible,"; The posting of ticket quota requirements at the 77th Precinct in 2010; The testimony of P.O. Craig Matthews of the 42nd Precinct who decried punishment if such quotas were not met; the statements of Captain Alex Perez that officers would 'face consequences' for failure to write sufficient summonses; and multiple other examples known by the CITY OF NEW YORK.

37. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

38. The herein above described actions and omissions, engaged in under the color of law by the defendants, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the plaintiff of rights secured to him by the Constitution and laws of the United States, including, but not limited to his First Amendment right of freedom of expression, his Fourth Amendment right to be free from unlawful seizures of his person, his Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, his Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

39. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

40. That as a result of the foregoing, the plaintiff ROBERT SANCHEZ was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFF ROBERT SANCHEZ

41. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 40 as though more fully set forth herein.

42. That on or about October 2, 2012 and within 90 days after the claims herein sued upon, plaintiff caused Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK, by delivering a copy thereof, to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claims, the time when, the place where, and the manner in which the claims arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notices of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant, and defendant conducted a General Municipal Law §50h hearing of plaintiff on June 4, 2013 and this action was commenced on the claim within one year and ninety days after the happening of the event upon which the claim is based.

43. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

44. That on the time, places and dates hereinbefore alleged the plaintiff ROBERT SANCHEZ was improperly summonsed, detained and/or arrested and confined without warrant, privilege, proper authority or justification, having no reason in law or in fact to arrest or confine ROBERT SANCHEZ.

45. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the plaintiff of Due Process under Law.

46. That the defendants, their agents, servants and/or employees summonsed, detained and/or arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification or without other privilege.

47. That the defendants, their agents, servants and/or employees summonsed, detained and/or arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

48. That the defendants, their agents, servants and/or employees unlawfully summonsed, detained and/or arrested and searched the plaintiff and took his property without any basis in law or fact or without other privilege, and plaintiff being aware of his unlawful confinement was thereby caused freight, shock, emotional distress and physical consequences.

49. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

50. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

51. That as a result of the foregoing, the plaintiff ROBERT SANCHEZ was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFF ROBERT SANCHEZ

52. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 51 as though more fully set forth herein.

53. That on the time, places and dates hereinbefore alleged the defendants, their agents, servants and/or employees continued to prosecute plaintiff and deny and threaten his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

54. That the defendants, their agents, servants and/or employees continued to prosecute the criminal actions against the plaintiff due to racism and prejudice and without any basis in law or fact.

55. That the defendants P.O. OLGA PETRENKO, P.O. DEREK BERNARD, P.O. YASMEL SOFO, P.O. ERIC WEINSTEIN and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutors of the criminal action and testified against plaintiff thereby causing him to suffer an unjust prosecution initiated without probable cause that the prosecutions would succeed.

56. That all criminal charges brought against plaintiff, which were brought under docket number 2012SX075961 in the Criminal Court of the City of New York, Bronx County, regarding the incidents of July 6, 2012, were dismissed by Judge of said court on November 15, 2012.

57. That all criminal charges brought against plaintiff, which were brought under summons number 4404234454 in the Criminal Court of the City of New York, Bronx County, regarding the incidents of July 15, 2012, were dismissed by Judge of said court on September 20, 2012.

58. That all charges brought against plaintiff, which were brought under summons number 440374554 in the Criminal Court of the City of New York, Bronx County, regarding the incidents of July 16, 2012, were dismissed by Judge of said court on September 20, 2012.

59. That all criminal charges brought against plaintiff, which were brought under case number 49076C-2012 in the Bronx Supreme Court, Criminal Term regarding the incidents of August 24, 2012, were dismissed by Judge John Wilson of said court on May 15, 2013

60. That all charges brought against plaintiff, which were brought under docket number 2012BX068428 in the Criminal Court of the City of New York, Bronx County, regarding the incidents of August 26, 2012, were dismissed by Judge Shawn Kelly of said court on March 12, 2013.

61. That by reason of the aforementioned, the Defendants actions amounted to a malicious prosecutions of ROBERT SANCHEZ.

62. As a result of the malicious prosecution, plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecutions, and was otherwise damaged and injured and forced to defend his liberty for extended periods of time.

63. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

64. That as a result of the foregoing, the plaintiff ROBERT SANCHEZ was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF ROBERT SANCHEZ

65. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 64 as though more fully set forth herein.

66. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

67. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper summoning, detention and/or arrests of individuals, and in the utilization of ticket quotas or other incentives or disincentives that resulted in the unlawful summoning, detention and/or arrests of innocent persons.

68. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, plaintiff ROBERT SANCHEZ was denied his freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and

sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.

69. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiffs demands judgment against the Defendants on the First, Second, Third and Fourth Causes of Action inclusive of punitive damages, and attorneys fees as permitted by statute, all in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
September 13, 2013


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff
ROBERT SANCHEZ

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-020

To:

CITY OF NEW YORK

CORPORATION COUNSEL

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P.O. Olga Petrenko, Shield No. 2506, P.O. Derek Bernard, Shield No. 21066, both 48th Pct, 450 Cross Bronx Expressway, Bronx NY 10457;

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P.O. Eric Weinstein, Shield No. 9700, 52nd Pct 1316 Webster Avenue, Bronx NY 10467

PLAINTIFF'S VERIFICATION

ROBERT SANCHEZ affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.


ROBERT SANCHEZ